

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail, and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). However, Plaintiff did not request sanctions and did not provide any basis for determining a reasonable amount. No sanctions will be imposed.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Sandra Pangelina is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: WITT

CASE NUMBER: 26CV-0211146

Tentative Ruling on Petition for Change of Name: Petitioner William Eulis Witt seeks to change his name to William James Witt. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WRIGHT VS. BURLINGTON COAT FACTORY OF TEXAS, INC, ET AL.

CASE NUMBER: 25CV-0209085

Tentative Ruling on Motion for Summary Judgment: Defendant Burlington Coat Factory Texas, Inc. ("BCFT") moves for summary judgment as to all claims asserted against it. The motion is brought on the grounds that BCFT did not breach their duty of care. Plaintiff Terry Wright opposes the motion.

Evidentiary Objections. Plaintiff objections to Exhibit A on the grounds that it is not based on personal knowledge and to Exhibit D on the grounds that it has not been authenticated. Plaintiff's objections are **SUSTAINED**. Defendant objections to the consideration of any arguments and/or facts raised by the deposition of PQM Spencer Webster because the deposition was not provided as an exhibit. Defendant also objection to the photograph contained in the Declaration of Anthony Andre, Ph.D. purportedly showing the vestibule area of the subject store because it was not disclosed during discovery and has not been authenticated. Defendant's objections are also **SUSTAINED**.

Factual Background. This is a personal injury action arising out of a trip and fall at the Burlington Coat Factory store located in Redding, California. Plaintiff alleges that on December 2, 2023, she entered the vestibule area of the store during a time when it had rained or was raining and slipped and fell resulting in her injuries due to a hazard created by rainwater on the floor. Plaintiff alleges that BCFT's failure to maintain safe conditions and/or adequately warn of the hazard was the cause of her injuries.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that

one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Here, Plaintiffs’ Complaint alleges two causes of action for premises liability and negligence. “The elements of a premises liability claim such as the one at issue in these proceedings are: a legal duty of care; breach of that duty; and proximate cause resulting in injury. *See Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.” *Moses v. Roger-McKeever* (2023) 91 Cal. App. 5th 172, 177–78. “The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury.” *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.

“Section 1714 of the Civil Code sets forth “the basic policy of this state” with respect to injuries caused by a dangerous condition on land, which “is that everyone is responsible for an injury caused to another by his want of ordinary care or skill in the management of his property.” *Martin v. Gladstone* (2023) 96 Cal.App.5th 681, 689. “The proper test to be applied to the liability of the possessor of land in accordance with section 1714 of the Civil Code is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others, and, although the plaintiff’s status as a trespasser, licensee, or invitee may in the light of the facts giving rise to such status have some bearing on the question of liability, the status is not determinative.” *Rowland v. Christian* (1968) 69 Cal.2d 108-118-119.

Here, BCFT’s Motion seeks to negate the element of breach of duty. The Motion is premised on BCFT’s argument that it did not breach the duty of care because it provided a black rubber anti-slip mat and yellow caution sign in the vestibule area which provided sufficient protection from and warning of the hazard. Plaintiff contends that BCFT’s conduct fell below the standard of care. BCFT attempts to argue that the standard of care is irrelevant, however a “breach is the failure to meet the standard of care.” *Coyle v. Historic Mission Inn Corp.* (2018) 24 Cal.App.5th 627, 643.

There is no dispute that BCFT was the possessor responsible for the premises, that BCFT owed a duty to its customers, or that Plaintiff slipped and fell in the vestibule area of the store. However, there is a dispute regarding whether the actions taken by BCFT were sufficient to meet or fell below the standard of care. BCFT contends that the black rubber anti-slip mat and yellow caution sign were sufficient to protect and warn against the hazard. Plaintiff argues that BCFT’s failure to

take alternative precautions such as dry mopping the area and the location/obstruction of the yellow caution sign fell below the standard of care. The Court finds there is genuine dispute of material fact regarding whether BCFT's conduct fell below the standard of care resulting in a breach of duty. "Thus, it is the jury that "has the burden of deciding not only what the facts are but what the unformulated standard is of reasonable conduct" [Citation]. In sum, it is the trier of fact who decides what the facts are and what reasonable care means within those facts." *Coyle v. Historic Mission Inn Corp.*, supra, 24 Cal.App.5th 627, 640.

BCFT argues that they had no duty to provide any further mitigation or warning of the hazard because it was open and obvious. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." *Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387. "[W]hile the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438. Considering the vestibule area encompasses the entrance of the store, it would have been necessary for customers such as Plaintiff to encounter the condition. The Court finds BCFT's defense that the open and obvious hazard negates their duty of care fails.

Defendant's Motion for Summary Judgment is **DENIED**. Defendant lodged a proposed order that will be modified to reflect the Court's ruling.

9:00 a.m. Review Hearings

AHERN, DO, ET AL. VS. PARK, RN

CASE NUMBER: 25CV-0209394

This matter is on calendar for review regarding status of arbitration. No status statements have been filed as ordered. Appearances are necessary on today's calendar to provide a status of arbitration.

CESSNA VS. BROCK

CASE NUMBER: 23CV-0202145

This matter is on calendar for review regarding status of bankruptcy stay. Plaintiff has submitted a Status Conference Statement which indicates that judgment was entered in the bankruptcy proceeding on February 18, 2026 but that the matter has been appealed. This matter is continued to **Tuesday, January 18, 2027, at 9:00 a.m. in Department 64** for review regarding status of bankruptcy stay. Plaintiff shall file a Status Report at least five court days prior to the continued hearing date which addresses the status of the bankruptcy. No appearance is necessary on today's calendar.

EYE VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208669

This matter is on calendar for review regarding status of service, responsive pleadings, and trial setting. Proof of service of summons is now on file for all Defendants. No responsive pleadings have been filed. Plaintiff has submitted a status report stating Plaintiff is in the process of retaining